

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 24, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 10, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending Chapter 10.76, Abandoned Vehicles, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Comments were made in support of the ordinance and appreciation was expressed to Captain David Janes, Police Department, for his efforts on the ordinance. Motion carried. Voting “yes” – all members of the governing body. (#4412)

ORDINANCE –3rd READING – Amending Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Dr. Aldrich moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4413)

ORDINANCE –3rd READING – Amending Chapter 6.08.200, Keeping of Bees, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the City of Cheyenne, Wyoming. Dr. Aldrich moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4414)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the Zoning Classification from CB Community Business to MUB Mixed-Use Business Emphasis for land located northwest of the intersection of Nationway and Logan Avenue. Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Upon inquiry, Charles Bloom, Director of the Planning & Development Department, provided information on the proposed development and advised the Planning Commission recommended approval. Mr. Bloom reported the development involves a demolition

and rebuild of the current dog grooming business currently on the property. Upon inquiry, Eric Fountain, Director of the Compliance Department, explained vehicles adjacent to the property have temporary registration and 2 shipping containers of junk have been removed from the area. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending Chapter 13.04 – Public Utilities Generally; Chapter 13.08 – Water Service System; Chapter 13.12 – Sewer System; Chapter 13.16 – Storm Sewers; and Chapter 13.20 – Wastewater Treatment & Disposal; of Title 13 – Public Services, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Johnson)

RESOLUTION –Establishing and adopting a Parking Fine Schedule for parking fees pursuant to City Code Section 10.60.040. Dr. Aldrich advised the item was reviewed under other items for the agenda at the January 18, 2022 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Dr. Aldrich moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting “no”. (#6206)

[CA] RESOLUTION – Authorizing up to a \$14,890,000 interfund loan from the One Percent Sales Tax Capital Projects Fund to the Special Purpose Option Sales Tax Capital Projects Fund to facilitate the construction of three fire stations, purchase fire trucks and replace the cemetery irrigation system as approved by voters on the November 2, 2021 Sixth Penny Ballot – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant under the Staffing for Adequate Fire and Emergency Response (SAFER) Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of adding nine new firefighter positions – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Certifying Planning Commission Action amending the Future Land Use Maps of PlanCheyenne changing the land use category from Community Business to Mixed-Use Commercial for property generally located west of Campbell Avenue, north of Nationway, and south of and adjacent to E. Lincolnway – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Grant of Right-of-Way Easement on City Owned Property, per Exhibit A, between the City of Cheyenne and Cheyenne Light, Fuel and Power Company for a 150’ wide right-of-way and easement for construction and maintenance of overhead power facilities – referred to Finance Committee.

[CA] Memorandum of Understanding (MOU) between City of Cheyenne and Doran Lummis to authorize filing of platting applications(s) for City-owned lands for the purpose of access to future development – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6957 between the City of Cheyenne and Wyoming Cattle Co., LLC adding the Mariah Pasture and extending the term of the Belvoir Ranch Grazing Lease Agreement through December 31, 2024 – referred to Finance Committee.

[CA] Contract Modification #3 to Contract #6441 between the City of Cheyenne and Microsoft Corporation for the renewal to the City's Enterprise Office 365 Online Enrollment – referred to Finance Committee.

[CA] Consideration of Bid #E-9-22 for furnishing three (3) new multi-purpose response vehicles (type 1 pumpers) and one (1) 100' heavy duty aerial tower, for the City of Cheyenne, Cheyenne Fire & Rescue Department. Motion (per Consent Agenda) carried (accepted bid from Front Range Fire Apparatus, Frederick, Colorado, in an amount not to exceed \$3,740,216.00).

[CA] Consideration of Bid #S-7-22 for a Contract between the City of Cheyenne and S&S Builders, LLC, for the Street and Alley Department Tent Building Repairs and Door Repairs Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-8-22 for a Contract between the City of Cheyenne and Front Range Roofing Systems, LLC, for the Ice and Events Center Roof Replacement Project (General Fund) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne, and KONE, Inc., for the repair of the South East Hydraulic Elevator located at the Jack Spiker Parking Garage (General Fund Reserves) – referred to Finance Committee.

Upon inquiry, City Treasurer Robin Lockman advised the contract related to the Knife River voucher would be provided to members of the governing body. No further comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement of a Public Hearing was made to be held February 14, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for 521 Southwest Drive (located east of Southwest Drive, south of I-80).

Under other business:

Chris Layman expressed concerns relating to the 26th Street construction project which included: deep open holes, mud, pedestrian difficulty navigating the area, delay of project completion, safety hazards and major inconvenience for the last 8 months. Ms. Layman advised she was given a time frame in which the project would be completed by the construction manager, noting that time frame has since past. Mayor Collins noted it was anticipated the entire project would be completed sooner and all underground work has been done. The remainder of the project, including paving the road, can't happen until the weather improves. Ms. Layman advised the

project engineer assured her the hole would be back filled and graded prior to being paved, and she requested this be done. Mayor Collins advised he would check with the company to see if this can be completed.

Jim Ridgeway provided photos of the 26th Street construction project area and voiced concerns with the project which included: open trenches, equipment and culverts piled up and fence posts being utilized incorrectly all of which are safety hazards. Mr. Ridgeway noted additional citywide concerns involving construction signage which alludes to work being done in areas where no work is actually be done and requested signs be removed. Mayor Collins advised he would look into Mr. Ridgeway's concerns. Upon inquiry, City Engineer Tom Cobb advised AVI is the construction manager for the 26th Street project.

Casey Quinn, BluePeak Fiberoptic Internet, provided information on the company noting they began fiberoptic internet construction locally in October. He provided contact information and advised any constituent issues or concerns can be directed to him.

Dr. Aldrich advised the City Council is challenging the Laramie County Commissioners during the Boys and Girls Club Chili Challenge fundraiser which will be held on Friday, January 28, 2022, from 5-8 p.m. at Little America.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:30 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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